

AI Action Plan
Attn: Faisal D'Souza, NCO
2415 Eisenhower Avenue
Alexandria, VA 22314

March 11, 2025

To Whom It May Concern:

The National Court Reporters Association (NCRA) and its 12,000 members are recognized worldwide as the top authorities on capturing and transcribing the spoken word into writing. With 126 years of leadership and innovation, the organization partners with courts to develop and apply the expertise of court reporters to improve the criminal and civil justice system in ways that best serve the public good.

Court reporters are highly trained, technology-savvy professionals who quickly and precisely convert the spoken word in court and/or deposition proceedings into information that can be read, searched, and archived by all parties. As impartial officers of the court, these “guardians of the record” then prepare verbatim transcripts of proceedings. Their critical role in America’s judicial system helps safeguard the legal process by guaranteeing accuracy, authenticity, access, and integrity in the chain of custody of all transcripts.

The exponential global growth of artificial intelligence (AI) and its related technologies such as automatic speech recognition (ASR), voice cloning, and digital audio and video recording have disrupted nearly every government, industry, and profession, including that of court reporters.

Concerned about fallibility, ethics, bias, and unrecognized risks, NCRA established the ad hoc STRONG Committee in 2019 to explore the realities and potential of AI, ASR, and other so-called “Large Language Models” (LLM). These models generate, predict, and recognize content in many formats. The committee’s review drew from the combined 525 years of professional experience by its esteemed committee members in 11 states. NCRA also passed a related policy statement which is contained in the report.

While foreign-owned technologies can offer great opportunities such as mass data management, their programmed algorithms must not be relied on to perform tasks that require the expertise, critical reasoning, and interpretive skills unique to specifically trained Americans.

The life-changing risks of incorrect, unverifiable versions of court transcripts, the known biases built into AI and ASR systems, and the mistaken assumptions around speed, accuracy, and cost savings in transcript preparation and processing are all key reasons why NCRA strongly encourages policy makers to commit to the use and best practices of American-trained and -based court reporting. The same holds true for other stakeholders such as judges, court administrators, bar associations, and justice protection organizations. The integrity of court reporting is vital to maintaining Americans' faith in our country's judicial system by ensuring fairness, transparency, and barrier-free access regarding court proceedings. Studies show this faith and commitment to rule of law have rapidly eroded in recent years for many reasons. Allowing flawed, oftentimes foreign-based technology, rather than trained American experts, to capture and ensure "the truth" of court proceedings and documents in the United States will likely further degrade public trust and compromise national security.

Some other NCRA findings include the following:

- The increasing quality of "deepfake" (voice cloning) technology — which creates and inserts false audio, video, or text content — is making confirmation and certification of original court transcripts difficult, often impossible, even for audio and video experts. Free, widely accessible programs allow even minimally trained professionals to corrupt original files by falsifying or eliminating content that could influence court decisions. Court proceedings, including depositions, also may become targets for impersonations of parties.
- Transcripts prepared by anyone other than the person who has digitally recorded the proceedings make chain of custody hard to track and do not comply with Federal Rules of Civil Procedure (FRCP) 80. Stenographic court reporters are required to certify that they have reported the legal proceeding and that the transcript of the proceeding is a true and complete record of their stenographic notes. This establishes proper chain of custody and enables courts to verify transcript veracity.
- One quality control management challenge for ASR is that it is less accurate than human court reporters and can demonstrate systemic bias against immigrants, people of color, people with speaking disabilities, older adults, and others. A Stanford University study found that non-human transcription contained nearly double the number of errors (40 percent) for Black speakers as for white speakers (20 percent), and mistakes were even higher for African American English (AAE) dialect speakers. Today's court reporters can accurately capture in writing 225 or more spoken words per minute in realtime.

- The common promise of cost savings when using non-human technology instead of court reporters is misguided. A record made and transcribed from digital recording can cost thousands of dollars more than that of a skilled stenographer, depending on the accounting methods, personnel, and court setup. A statewide staffing study by the Pierce County Superior Court in Washington determined that “actual cost savings would be minimal at best, with the court performance suffering greatly from the lack of realtime reporting. There is no court recording equipment which has the performance level of a court reporter.”

- The hijacking of digital accounts is among the greatest risks for administrators of high-volume courts. Rising numbers of court cases mean more personnel will require access to the cloud accounts, boosting the chances of successful phishing or scams. The integrity of court transcripts compiled and stored via cloud computing also can be compromised due to cybersecurity threats such as cryptojacking, data breaches, and denial-of-service attacks.

Protecting the judicial integrity of America’s legal system and maintaining public trust in our courts are core to achieving the President’s objective of American dominance of AI. Although emerging technologies are increasingly competent tools for myriad tasks, the serious responsibilities of court reporting must not be among them.

Sincerely,

Colin Brehm
State Government Relations Manager
National Court Reporters Association

This document is approved for public dissemination. The document contains no business-proprietary or confidential information. Document contents may be reused by the government in developing the AI Action Plan and associated documents without attribution.